

Electronically Received 01/27/2025 03:58 PM

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, state bar number, and address):

Chris Evans #202135/Mackenzie Gonzales #333839

Kimball, Tirey & St. John LLP

915 Wilshire Blvd, Suite 1650

Los Angeles, CA 90017

TELEPHONE NO.: (213) 337-0050

FAX NO. (Optional): (213) 337-0080

E-MAIL ADDRESS (Optional):

ATTORNEY FOR (Name): Plaintiff

Reserved for Clerk's File Stamp

FILED

Superior Court of California
County of Los Angeles

01/28/2025

David W. Stoyke, Executive Officer / Clerk of Court

By: K. O'Brien Deputy

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

COURTHOUSE ADDRESS: 9425 PENFIELD AVENUE, #1200

CHATHSWORTH, CA 91311

PLAINTIFF: Essex Property Trust, Inc.

DEFENDANT:

[REDACTED]

**APPLICATION AND ORDER TO SERVE SUMMONS BY POSTING
FOR UNLAWFUL DETAINER**

CASE NUMBER:

25CHUD00001

I am the ☐ plaintiff ☒ plaintiff's attorney ☐ other (specify):

I apply for an order pursuant to Code of Civil Procedure section 415.45 to permit service by posting of the summons and complaint on defendant(s). Specify name(s):

[REDACTED]

The complaint seeks possession of property location at [REDACTED]

The property is ☒ residential ☐ commercial.

4. The notice to quit, or pay rent or quit, was served by: ☐ personal service ☐ substituted service ☒ posting and mailing ☐ other (specify):
5. At least three attempts to serve in a manner specified in Code of Civil Procedure, Article 3 (other than posting or publication) are required. List attempts to serve, if made by declarant, or attach declaration(s) of process server(s) stating attempts to locate and serve the defendants. If service not made, please explain.

DATE	TIME	REASON SERVICE COULD NOT BE MADE/REMARKS
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☒ Declaration(s) of process server stating attempts to locate and serve the defendant(s) is attached and incorporated into this application by reference.

Short Title Essex v [REDACTED]	Case Number 25CHUD00001
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6. Service ☐ has ☒ has not been attempted during regular business hours at the place(s) of employment of the defendant(s). If not, state reason: ☒ the place(s) of employment of the defendant(s) is not known.
☐ Other (specify) :
7. Service ☒ has ☐ has not been attempted at the "residence" of the defendant(s). If not, state reasons:
☐ The place of residence of the defendant(s) is not known.
☐ Other (specify):
8. Other:
9. Did the plaintiff pay for help from a registered unlawful detainer assistant (Bus. and Prof. Code, §§ 6400-5415) who helped prepare this form? ☐ Yes ☒ No If yes, complete the following information:
Name of Unlawful Detainer Assistant: ; Telephone Number:
Address (Mailing address, city and Zip code):

Registration #: ; County of Registration: .

<i>I declare under penalty of perjury under the laws of the State of California, that the foregoing is true and correct.</i>		
DATE 01/27/2025	TYPE OR PRINT DECLARANT'S NAME Chris Evans	DECLARANT'S SIGNATURE <u>/s/ Chris Evans</u>

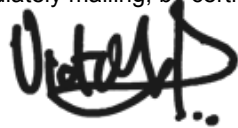
FINDINGS AND ORDER

- THE COURT FINDS:
- The defendant(s) named in the application cannot with reasonable diligence be served in any manner specified in Code of Civil Procedure, Article 3.
 - (a) A cause of action exists against the defendant(s) named in the application; **and/or** (b) defendant(s) named in the application has or claims an interest in real property in California that is subject to the jurisdiction of the court; **and/or** (c) the relief demanded in the complaint consists wholly or partially in excluding the defendant(s) from any interest in the property.

THE COURT ORDERS:

The defendant(s) named in the application may be served by posting a copy of the summons and complaint on the premises in a manner most likely to give actual notice to the defendant(s), and by immediately mailing, by certified mail, a copy of the summons and complaint to the defendant(s) at his/her last known address.

Dated: 01/28/2025

Victor Avila / Judge
JUDICIAL OFFICER

F44
DIV. / DEPT.

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address) Kimball, Tirey, and St John, LLP Chris Evans #202135//Mackenzie Gonzales #333839/Manisha Bajaj #293791 915 Wilshire Blvd Suite 1650 Los Angeles, CA 90017 TELEPHONE NO: 213-337-0050 FAX NO (Optional): E-MAIL ADDRESS (Optional): laserveupdate@kts-law.com ATTORNEY FOR (Name):		FOR COURT USE ONLY
SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES STREET ADDRESS: 9425 PENFIELD AVE MAILING ADDRESS: CITY AND ZIP CODE: CHATSWORTH, 91311 BRANCH NAME: CHATSWORTH		
PLAINTIFF / PETITIONER: Essex Pro ert Trust, Inc. DEFENDANT / RESPONDENT:		CASE NUMBER: 25CHUD00001
DECLARATION OF DILIGENCE		Ref. No. or File No.: 12460085 (24-4210882)

I received the within assignment for filing and or/service on: Jan 6, 2025 at 9:00pm PSTJan 6, 2025 at 9:00pm PSTJan 6, 2025 at 9:00pm PSTJan 6, 2025 at 9:00pm PSTJan 6, 2025 at 9:00pm PST and that after due and diligent effort I have been unable to serve said person. I attempted service on this servee on the following dates and times:

Servee and Address: [REDACTED]

Documents: Civil Case Cover Sheet, Summons - Unlawful Detainer - Eviction, Prejudgment Claim of Right to Possession, Complaint - Unlawful Detainer, Plaintiff's Mandatory Cover Sheet and Supplemental Allegations

As enumerated below:

- 1) Attempt: Jan 9, 2025, 7:40 am PST a
I knocked on the door several times b
- 2) Attempt: Jan 10, 2025, 8:40 pm PST
There were no lights on in the unit an
- 3) Attempt: Jan 12, 2025, 10:40 am PS
I knocked on the door several times b
- 4) Attempt: Jan 13, 2025, 5:10 pm PST
I announced that I am a registered pr
- 5) Attempt: Jan 15, 2025, 9:18 am PST
I knocked on the door several times but no one answered. There was still no response.

I declare under penalty of perjury that the foregoing is true and correct and that this declaration was executed on January 17, 2025

Fees: \$85.00



RONNY W DEL CID
5837 LA

M & M Attorney Service Inc.
P.O. Box 139
Van Nuys, CA 91408

01/17/2025

Date

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address) Kimball, Tirey, and St John, LLP Chris Evans #202135//Mackenzie Gonzales #333839/Manisha Bajaj #293791 915 Wilshire Blvd Suite 1650 Los Angeles, CA 90017 TELEPHONE NO: 213-337-0050 FAX NO (Optional): E-MAIL ADDRESS (Optional): laserveupdate@kts-law.com ATTORNEY FOR (Name):		FOR COURT USE ONLY
SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES STREET ADDRESS: 9425 PENFIELD AVE MAILING ADDRESS: CITY AND ZIP CODE: CHATSWORTH, 91311 BRANCH NAME: CHATSWORTH		
PLAINTIFF / PETITIONER: Essex Pro ert Trust Inc. DEFENDANT / RESPONDENT:		CASE NUMBER: 25CHUD00001
DECLARATION OF DILIGENCE		Ref. No. or File No.: 12460083 (24-4210882)

I received the within assignment for filing and or/service on: Jan 7, 2025 at 12:00am PSTJan 7, 2025 at 12:00am PSTJan 7, 2025 at 12:00am PSTJan 7, 2025 at 12:00am PSTJan 7, 2025 at 12:00am PST and that after due and diligent effort I have been unable to serve said person. I attempted service on this servee on the following dates and times:

Servee and Address:

Documents: Civil Case Cover Sheet, Summons - Unlawful Detainer - Eviction, Prejudgment Claim of Right to Possession, Complaint - Unlawful Detainer, Plaintiff's Mandatory Cover Sheet and Supplemental Allegations

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RONNY W DEL CID
5837 LA

M & M Attorney Service Inc.
P.O. Box 139
Van Nuys, CA 91408
818-634-9850

01/17/2025

Date